

comes close to being a wager on the outcome of the case, with all of the implications that entails.

Havens Realty Corp. v. Coleman, 455 U. S. 363 (1982), most recently—and, it now appears, most conveniently—decided, affords less than comfortable support for retaining the case.³ The pertinent question here is not whether the case is moot, but whether this is the *kind* of case or controversy over which we should exercise our power of discretionary review. Cf. *United States v. Johnson*, 319 U. S. 302 (1943).

Apprised of all developments, I therefore would have dismissed the writ as having been improvidently granted. The Court, it seems to me, brushes by this factor in order to resolve an issue of profound consequence that otherwise would not be here. Lacking support for such a dismissal, however, I join the dissent.

³The agreement in *Havens* was not final until approved by the District Court, 455 U. S., at 370–371. In the present case, the parties made their agreement and presented it to the District Court only after the fact. Further, there was no preliminary payment in *Havens*. Each respondent there was to receive \$400 if the Court denied certiorari or affirmed, and nothing if the Court reversed. Here, \$142,000 changed hands regardless of the subsequent disposition of the case, with the much smaller sum of \$28,000 resting on the Court's ultimate ruling. For me, this is not the kind of case or controversy contemplated by Art. III of the Constitution.